

LEGAL COMPLIANCE AND DISPUTE RESOLUTION FRAMEWORK FOR VEHICLE REGISTRATION IN SRI LANKA

COMPLIANCE REQUIREMENTS:

Mandatory Standards:

1. All vehicles must meet safety and emission standards
2. Regular vehicle emission tests (VET) required
3. Annual revenue license renewal mandatory
4. Insurance coverage must be maintained
5. Roadworthiness certificates for older vehicles

Legal Documentation Requirements:

- Valid Certificate of Registration
- Current revenue license
- Insurance certificate or security
- Import permits (for imported vehicles)
- Manufacturing approval (for local assembly)

DISPUTE RESOLUTION MECHANISMS:

Common Dispute Types:

1. Ownership conflicts between multiple claimants
2. Document authenticity challenges
3. Transfer reversals or cancellations
4. Registration rejections
5. Vehicle confiscation appeals

Resolution Procedures:

1. Initial Review by Commissioner-General
2. Motor Traffic Appeals Tribunal (Section 213AA)
3. Civil court proceedings for ownership disputes
4. Administrative appeals to Ministry Secretary

Evidence Requirements:

- Original ownership documents
- Chain of title documentation
- Proof of payment records
- Witness statements
- Expert technical reports

LEGAL PRECEDENTS AND CASE LAW:

Key Legal Principles:

- Registered owner deemed legal owner for Motor Traffic Act purposes
- Good faith purchaser protection in certain circumstances
- Burden of proof on challenger in ownership disputes
- Commissioner-General's discretionary powers in registration matters

Court Decisions Impact:

- Supreme Court and Court of Appeal interpretations
- High Court jurisdiction over serious violations
- Magistrate Court handling of routine violations

PENALTIES AND ENFORCEMENT:

Criminal Offenses:

- Using stolen vehicles: Imprisonment up to 6 months
- Document forgery: Rs. 10,000-25,000 plus possible imprisonment
- Unlawful manufacturing: Rs. 200,000-300,000 plus confiscation

Civil Remedies:

- Damages for wrongful possession
- Return of vehicles to rightful owners
- Compensation for registration delays

Administrative Actions:

- Registration cancellation
- License suspension
- Vehicle impoundment
- Blacklisting from future registrations

APPEALS PROCESS:

Motor Traffic Appeals Tribunal:

- 14-day appeal period from decision
- Written submissions required
- Final decision binding
- No further administrative appeal

Court Appeals:

- Civil jurisdiction for ownership disputes
- Judicial review of administrative decisions
- Constitutional challenges to regulations
- Enforcement of tribunal decisions